



Transforming Women's Rights

The Labour Codes will not only unlock the untapped potential of the female workforce but also empower women through increased participation in the economy

BY **SUMITA DAWRA**, FORMER SECRETARY, MINISTRY OF LABOUR & EMPLOYMENT, GOVERNMENT OF INDIA

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HE HISTORIC LABOUR reforms were ushered in the country with notification of the long-awaited labour codes on November 21. Covering wages, social security, industrial relations and occupational safety, health and working conditions for India's 600 million workforce, the codes subsumed, streamlined and rationalised 29 labour laws, while introducing new provisions.

Included are special provisions related to employment of women on night shifts, i.e., before 6 am and after 7 pm, subject to their consent and the employer adhering to prescribed conditions related to their safety, health, working conditions. This important provision will not only unlock the untapped potential of the female workforce but will also empower women through increased participation in the economy.

For decades, Indian women were prohibited from working on night shifts under archaic provisions of The Factories Act, 1948, prompting many states to seek exemptions in recent years or to amend their respective laws. Studies indicate an improvement in female

labour force participation in states where this provision has been amended.

This special provision for women has brought uniformity in labour law in the country. It places the responsibility of ensuring the safety of women working at night on employers. These may include transportation, well-lit premises, installation of CCTV cameras, apart from other safeguards.

The provision enables greater flexibility in employment and working hours for women, while opening avenues for career progression. In continuous process-based manufacturing industries such as steel, chemicals, food processing, beverages, paper, pharmaceuticals, and oil-refining—with three shifts seven days a week—women, including engineers, were disadvantaged, often hindering their progression to senior supervisory or managerial positions.

The codes also mandate the setting up advisory boards that have women. For instance, one-third members of the Central Advisory Board for fixing or revising wages and enhancing employment opportunities must be women, as must all State Advisory Boards for Wages.

Similarly, a National Social Security Board for unorganised workers—tasked with recommending schemes for unorganised workers and advising on related matters—must have adequate representation of women. Parallel representation is also mandated in all State Unorganised Workers' Social Security Advisory Boards.

Women workers will likewise be adequately represented in all grievance

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PROVISIONS PROMOTING GENDER EQUALITY, TIMELY WAGE PAYMENT WILL EMPOWER WOMEN